

DATED THE 15<sup>th</sup> DAY OF July 2021

BETWEEN

GLOBAL STAR INVESTMENTS LIMITED

AND

PATRICIA WARINGA

(Tenant)



TENANCY AGREEMENT OF PREMISES: SIAYA/TOWNSHIP/PLOT 1/550

DRAWN BY:

M/S M. KORONGO & COMPANY,

ADVOCATES

SALMAN CENTER, 3RD FLOOR, RM 3-5,

P.O BOX 18898-20100

NAKURU

IN THE REPUBLIC OF KENYA, TENANCY/LEASE AGREEMENT

DATE:

1/July/2021

PARTIES:

1. GLOBAL STAR INVESTMENTS LIMITED

2. THE TENANT: PATRICIA WARINGA

P.O Box 365 - SIAYA

PREMISES:

PLOT NO. SIAYA/ TOWNSHIP/ BLOCK 1/550 – D#

TERM: With Effect from 1/July DAY OF 2021

RENT: KSh. 25,000 per month at rate of KSh. 120 per square feet (subject as provided in the Letting Provision), clear of any deductions whatsoever for every month but not later than 5<sup>th</sup> day of every succeeding month of the term payable in advance by equal installments of the said amount to the landlord, first payment being due and payable on the date of execution hereof.

DEPOSIT: 3 month(s), Deposit being KSh ..... clear of any Deductions whatsoever payable to the Agents upon execution of this agreement,

SUBJECT to the following terms and conditions:

1. The premises shall be occupied only by the above-mentioned Tenant. Tenants shall use the premises for **COMMERCIAL** purposes without the Landlord's prior written consent, which consent shall only be communicated through the landlord's appointed Agent's office.

2. INDIVIDUAL LIABILITY

Each Tenant who signs this Agreement, whether or not said person is or remains in possession, shall be jointly and severally liable for the full performance of each and every obligation of this Agreement, but not limited to, the payment of all rent due and the payment of costs to remedy damages to the premises regardless of whether such damages were caused by a Tenant or invitee of a Tenant.

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### 3. TERM OF THE TENANCY

- a. The term of this Agreement shall commence on 1<sup>st</sup> JULY AUGUST, 2021, and shall continue from that date on a month-to-month basis. This Agreement will continue for successive terms of one month each until either Landlord or Tenants terminate the tenancy by giving the other party Thirty (30) days written notice of an intention to terminate the premises.
- b. In the event such notice is given, Tenants agree to pay all rent up to and including the notice period.
- c. In the event Tenants fail to give written notice of an intention to vacate the premises Tenants shall forfeit the whole of the deposit paid.

### 4. PAYMENT OF RENT

- a. Tenants shall pay Landlord rent of KSh...25,000/-..... per month, payable in advance on or before the 5<sup>th</sup> day of each month. If that day falls on a weekend or legal holiday, the rent is due on the next business day.
- b. Rent shall be paid by in either of the following manner: -
- By direct cash deposit to:  
Global Star Investments Limited  
Kenya Commercial Bank (KCB)  
Account number 1285399528  
Siaya Branch
  - By Mpesa Pay bill: .....OR
  - In such other place or manner as Agent shall designate from time to time.

### 5. LATE CHARGES AND ACCESS RESTRICTION

- a. If rent is paid after the 5<sup>th</sup> day of the month, there will be a late charge of KSh. 2,000/= assessed for the first 5 days ending the 10<sup>th</sup> of the said month.
- b. If rent remains unpaid after the 10<sup>th</sup> of the said month that it becomes due, the Landlord through his appointed Agent, shall have the right to restrict the Tenant's access to the premises by unilaterally locking the premises' doors without any reference to the tenant, and the said doors shall remain so locked until the rent and all accrues charges are paid or until a mutual agreement is reached between the parties in writing and a penalty of 10% of the unpaid months be paid by the tenant..

### 6. FAILURE TO PAY

As required by law, Tenants are hereby notified that the Landlord through the appointed agent hereby reserves the right to distress for rent as and where applicable without further reference to the tenant.

### 7. SECURITY DEPOSIT

- a. Before the commencement of this Agreement, Tenants shall pay to the landlord's bank account of KSh ..... Being one month's rent as a security deposit.

- b. Landlord may use therefrom such amounts as are reasonably necessary to remedy Tenant's default in the payment of rent, repair damages to the premises exclusive of ordinary wear and tear, and to clean the premises if necessary.
- c. Landlord shall refund Tenants the balance of the security deposit after such deductions within Two(2) month after the termination of this Agreement.
- d. If deductions have been made, Landlord shall provide Tenants with an Itemized account of each deduction including the reasons for and the amount of each deductions.

#### 8. UTILITIES

Tenants shall pay directly for all utilities, and charges provided to the premises including all deposits required except for the following, which shall be paid by Landlord:

- Water
- Cleaning of main entrance, stairs, and toilets

#### 9. PARKING

- a. Tenants may be assigned parking space. This space shall be used for the parking of \_\_\_ car(s) only.
- b. Tenants may not repair vehicles of any kind in any parking space or anywhere else on or about the property. Grease, oil, and any other dripping must be cleaned by Tenants when they occur and at Tenants' expense.

#### 10. PETS AND KITCHEN GARDENING

- a. No animal, bird or other pet shall be brought or kept on the premises without Landlord's prior written consent, which consent shall only be communicated through the appointment Agent's office.
- b. No farming of vegetables, fruits, flowers or other plant or plant materials shall be on or around the premises without Landlord's prior written consent, which consent shall only be communicated through the appointed Agent's office.

#### 11. QUIET ENVIRONMENT

Tenants shall be entitled to quiet environment of the premises. Tenants shall not use the premises in such a way as to violate any laws, by-laws, or rules, commit waste or nuisance or annoy, disturb, inconvenience, or interfere with the quiet environment of any other or nearby establishments.

#### 12. ASSIGNMENT AND SUBLETTING

- a. No portion of the premises shall be sublet, nor this Agreement assigned without the prior written consent of the Landlord, which consent shall only be communicated through the appointed Agent's office.



- b. Any attempted subletting or assignment by Tenants shall, at the election of Landlord through the Agent, be an irremediable breach of this Agreement and cause for immediate termination as provided here and by law.

### 13. POSSESSION OF THE PREMISES

- a. The failure of Tenants to take possession of the premises shall not relieve them of their obligation to pay rent.
- b. If Landlord is unable to deliver possession of the premises for any reason not within Landlord's control, Landlord shall not be liable for any damage caused thereby, nor will this Agreement be void or voidable, but Tenants shall not be liable for any rent until possession is delivered.
- c. If Landlord is unable to deliver possession within thirty (30) calendar days after the agreed commencement date, Tenants may terminate this Agreement by giving written notice to Landlord through the appointed agent and shall receive a refund of all rent and security deposits paid.

### 14. CONDITIONS OF THE PREMISES

Tenants agree to: -

- Properly use, operate, and safeguard the premises and all furniture and furnishing, appliances, fixtures, and fittings within the premises
- Maintain the premises in clean, sanitary, and tenantable condition, and upon termination of the tenancy, to surrender the premises to Landlord through the appointed agent in the same condition as when Tenants first took occupancy, except for ordinary wear and tear,
- If the surrounding grounds are part of the premises and for exclusive use of Tenants, Tenants agree to irrigate and maintain the surrounding grounds in a clean and safe manner, keeping the grounds clear of rubbish and weeds and trimming all grass and shrubbery as necessary to affect a neat and orderly appearance to the property,
- Notify Landlord through the agent in writing upon discovery of any damages, defects, or dangerous conditions in and about the premises; and
- Reimburse Landlord for the cost of any repairs to the premises of damages caused by misuse or negligence of Tenants or their guests or invitees.
- Tenants are responsible for partitioning their allocated spaces as specified by the landlord's architect.

Tenants acknowledge that they have examined the entire interior and exterior of the premises, including plumbing and electrical appliances, fixtures, and paint, and have found them to be in good, safe, and clean conditions and repair, with the following exceptions: (Specify "none" if there are no exceptions)

- a. ....
- b. ....
- c. ....

A handwritten signature in blue ink, possibly reading 'A', is centered at the bottom of the page. Two horizontal blue arrows point outwards from the signature, one to the left and one to the right.



- d. ....
- e. Etc.

#### 14. REPAIRS, ALTERATIONS AND DAMAGES

- a. Except as provided by the law or as authorized by the prior written consent of Landlord through the agents, Tenants shall not make any repairs or alterations to the premises, including but not limited to, painting the walls, installing wallpaper, murals, paneling, tile or hanging posters or pictures.
- b. If the premises are damaged or destroyed as to render them uninhabitable, then either landlord or tenants shall have the right to terminate this agreement as of the date on which such damage occurs, through written notice to the other party to be given within fifteen days of occurrence of such damage.
- c. However, if such damage should occur as the result of the conduct or negligence of Tenant or tenant's guests or invitees, Landlord through the appointed agents only shall have the right to termination and Tenants shall be responsible for all losses, including, but not limited to, damage and repair costs as loss of rental income.

#### 15. EMERGENCY ENTRY AND INSPECTION

- a. Tenants shall make the premises available to Landlord through the Landlord's agents for the purposes of making repairs or improvements, or to supply agreed services or show the premises to prospective buyers or tenants, or in case of emergency.
- b. Except in case, of emergency, Landlord through the agent shall give Tenants reasonable notice of intent to enter.
- c. For these purposes, at least twenty-four (24) hour written notice shall be deemed reasonable and reasonable hours shall be defined as 6 am to 6 pm Monday through Friday and 8am to 8pm on Saturday and Sundays.
- d. In order to facilitate Landlord through his agents' right of access, Tenants shall not, without Landlord's prior written consent, which consent shall only be communicated through the Agent's office, add, alter or re-key any locks to the premises.
- e. Tenants further agree to notify Landlord's agents in writing if Tenants install any burglar alarm system, including instructions on how to disarm it in case of emergency entry.

#### 16. EXTENDED ABSENCES AND ABANDONMENT

- a. In the event Tenants will be away from the premises for more than **thirty (30)** consecutive days, Tenants agree to notify Landlord in writing of the absence.

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- b. During such absence, Landlord through the appointed Agent may enter the premises at times reasonably necessary to maintain the property and inspect for damages and needed repairs.
- c. Abandonment is defined as absence of the Tenants from the premises, for at least Three (3) consecutive months without months' notice to Landlord or his appointed Agents. If the rent is outstanding and unpaid for fourteen (14) days and there is no reasonable evidence, other than the presence of the tenants' personal property, that the Tenants are occupying the unit, Landlord may at Landlord's option terminate this agreement and regain possession in the manner prescribed by law.

#### 17. INSURANCE DISCLAIMERS

- a. Tenants assume full responsibility for all personal property placed, stored, or located on or about the premises.
- b. Tenants' personal property is not insured by Landlord or his appointed Agent. Landlord recommends that Tenants obtain insurance to protect against risk of loss from harm to Tenants' personal property. Landlord or the appointed Agent shall not be responsible for any harm to Tenants' property resulting from fire, theft, burglary, strikes, riots, orders or acts of public authorities, acts of nature or any other circumstance or event beyond Landlord's control.

#### 18. HOLD HARMLESS

Tenants expressly release Landlord and his agents from all liability for any damages or injury to Tenants, or any other person, or to any property, occurring on the premises unless such damage is the direct result of the negligence or unlawful act of Landlord or Landlord's appointed Agents.

#### 19. ADDITIONAL PROVISIONS

(Specify "none" if there are no additional provisions)

LEGAL FEES OF KSHS. 2,500/- TO BE SHARED EQUALLY BETWEEN THE PARTIES

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#### 20. ENTIRE AGREEMENT

- a. This document constitutes the entire Agreement between the Tenants and Landlord through his appointed Agents.
- b. This Agreement cannot be modified except in writing and must be assigned by all parties. Neither Landlord through his agents nor tenants have made any promises or representations, other than those set forth in this Agreement and those implied by law.

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- c. The failure of Tenant or their guests or invitees to comply with any term of this Agreement is grounds for termination of the Tenancy Agreement, with appropriate notice to Tenant and procedures as required by the law.

**IN WITNESS WHEREOF** this agreement has been duly executed by the parties hereto the day and year first herein above written.

**SIGNED** On behalf of Global Star Investments Limited

NAME: .....

SIGNATURE: .....

DATE: .....

ID NO. ....

All in the presence of:

ADVOCATE

GEORGE KORONGO  
ADVOCATE & COMMISSIONER  
FOR OATHS  
P.O. Box 18898-20100 NAIROBI

**SIGNED by the TENANT**

NAME: .....

SIGNATURE: .....

DATE: .....

ID NO. ....

In the presence of:

ADVOCATE

GEORGE KORONGO  
ADVOCATE & COMMISSIONER  
FOR OATHS  
P.O. Box 18898-20100 NAIROBI

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